

KNOWLEDGE BASE DOCUMENT: FOREIGN WORKER PERMIT (PLKS) RENEWAL AND JTKSM COMPLIANCE

1. Introduction to the Temporary Employment Visit Pass (PLKS) In Malaysia, the official document that permits a foreign national to legally work in the country is known as the Pas Lawatan Kerja Sementara (PLKS), or the Temporary Employment Visit Pass. The administration of foreign labor is jointly managed by the Ministry of Home Affairs (via the Immigration Department of Malaysia - JIM) and the Ministry of Human Resources (via the Department of Labour Peninsular Malaysia - JTKSM).

The renewal of a foreign worker's permit is an annual, mandatory obligation that falls entirely on the shoulders of the employer. A PLKS is strictly tied to a specific employer and a specific sector (such as Manufacturing, Construction, Plantation, Agriculture, Services, or Domestic Help). Foreign workers are prohibited from changing employers or sectors without going through a complex legal transfer process.

The standard validity of a renewed PLKS is exactly 12 months. Generally, foreign workers are permitted to work in Malaysia for a maximum duration of up to 10 years, subject to annual renewals. Allowing a worker's permit to expire turns the worker into an undocumented immigrant (overstayer), which carries severe legal and financial consequences for both the worker and the employer under the Immigration Act 1959/1963. Therefore, understanding the comprehensive renewal process, particularly the prerequisites mandated by JTKSM, is vital for business continuity.

2. The Critical Role of JTKSM: Labor Laws and Accommodation (Act 446) While the physical pass is issued by the Immigration Department, the Department of Labour (JTKSM) acts as the primary gatekeeper for labor welfare. Before an employer can successfully renew a work permit through immigration channels, they must be in absolute compliance with Malaysian labor laws.

A cornerstone of this compliance is the Employees' Minimum Standards of Housing, Accommodations and Amenities Act 1990 (Act 446). Following recent amendments, Act 446 strictly mandates that employers must provide conducive and safe living quarters for their foreign workers. Employers must obtain a Certificate of Accommodation (Perakuan Penginapan) from JTKSM. During the PLKS renewal process, immigration systems interface with JTKSM databases. If an employer has been flagged by JTKSM for failing to provide approved centralized accommodation or standard housing, the PLKS renewal will be blocked.

Additionally, under Section 60K of the Employment Act 1955 (amended recently), employers are required to obtain prior approval from JTKSM before hiring any non-citizen workers. While the ePPAx system approval is primarily focused on new hires and expatriates, JTKSM continuously monitors existing employers. Employers who fail to pay the mandated minimum wage, fail to make statutory SOCSO (Social Security

Organization) contributions, or have pending labor court cases against them will face systemic roadblocks when attempting to renew their workers' PLKS.

3. Mandatory Prerequisites for PLKS Renewal Employers must initiate the renewal process at least three (3) months before the exact expiry date of the current PLKS. Leaving the renewal to the last minute often results in system lockouts and forced repatriation. Before logging into any government portal, the employer must ensure the following four prerequisites are met:

First, Passport Validity. The foreign worker's passport must have a minimum validity of 12 months from the date of the renewal application. If the passport is expiring soon, the employer must first liaise with the worker's respective embassy or high commission in Malaysia to renew the passport. Once the new passport is issued, the employer must perform a "Transfer of Endorsement" at the Immigration Department to move the current valid visa to the new passport before applying for the annual renewal.

Second, Medical Fitness (FOMEMA). The Foreign Workers Medical Examination Monitoring Agency (FOMEMA) is the sole concessionaire appointed by the Ministry of Health to conduct health screenings for foreign workers. Recent updates mandate that foreign workers must undergo a yearly FOMEMA medical check-up to renew their annual work permits. The worker must be certified "FIT" by a registered clinic.

Third, Mandatory Insurance Coverage. Employers must procure specific insurance guarantees for their workers. This includes the Insurance Guarantee (IG), the Foreign Worker Hospitalisation Scheme (SPIKPA) which covers hospital admission costs in government hospitals, and the Foreign Workers Compensation Scheme (FWCS) or SOCSO coverage to protect against workplace accidents. These insurance policies must be active for the upcoming 12-month period.

Fourth, a Valid Employment Contract. There must be an ongoing, signed employment contract between the employer and the worker that adheres to current minimum wage laws and working hour regulations set by the Ministry of Human Resources.

4. The FOMEMA Medical Examination Process in Detail Because the FOMEMA screening is the most common bottleneck in the renewal process, it requires careful management. Employers must register their workers for the medical check-up via the FOMEMA online portal. After paying the medical fee (which is approximately RM217, though subject to minor variations), the employer selects a registered panel clinic.

The worker must visit the clinic for physical examinations, blood tests, and X-rays. FOMEMA tests for communicable diseases such as Tuberculosis (TB), Hepatitis B, Syphilis, HIV/AIDS, as well as testing for pregnancy and illicit drug use.

If the worker passes, their status is updated to "FIT" in the FOMEMA system, which is automatically linked to the Immigration Department's database, allowing the renewal

application to proceed. If the worker fails, they are given an "UNFIT" status. An unfit worker is legally prohibited from continuing employment in Malaysia. The employer does have a small window to file an appeal (Rayuan) for a re-test if they believe the result was a false positive. However, if the unfit status is finalized, the employer must immediately apply for a Check-Out Memo (COM) to repatriate the worker back to their home country.

5. Step-by-Step Online Renewal Process for Corporate Sectors For the commercial sectors (Manufacturing, Construction, Plantation, Agriculture, and Services), the renewal process has been entirely digitized to reduce counter congestion at Immigration offices. The two primary portals utilized for this are MyEG and the Foreign Workers Centralized Management System (FWCMS).

Step 1: System Login and Verification. The employer logs into the MyEG or FWCMS portal using their registered corporate credentials. They select the PLKS Renewal module and input the worker's details (Passport Number or Permit Number). The system will automatically check the backend for the FOMEMA "FIT" status and JTKSM compliance.

Step 2: Document Upload. The employer must upload clear, scanned copies of required documents. This typically includes the worker's passport (biodata page), the expiring work permit, and the proof of purchased insurance (IG/SPIKPA). If the insurance was purchased directly through the renewal portal (like MyEG), the upload may be bypassed as the system auto-generates the policy.

Step 3: Fee Payment. The employer must pay the renewal fees online via FPX banking or credit card. The total cost is a combination of the Levy, the Processing Fee (RM125), and a Visa Fee (which varies from RM15 to RM50 depending on the worker's nationality). The Levy is the largest component and varies heavily by sector. For example, the Manufacturing and Construction sectors face a high levy of RM1,850 per worker. The Plantation and Agriculture sectors enjoy a subsidized levy of RM640 per worker.

Step 4: Issuance of ePASS. Once the payment is verified and the application approved by the Immigration officer, the physical permit sticker is no longer printed. Instead, an ePASS is issued digitally. The employer prints this ePASS, which serves as the official legal proof of the renewed PLKS, and the worker must keep a copy of it alongside their passport at all times.

6. PLKS Renewal for Foreign Domestic Helpers (PRA / Maids) The renewal process for Pembantu Rumah Asing (PRA), or Foreign Domestic Helpers, operates under slightly different regulations compared to corporate workers. Domestic helpers are managed individually by their employers (heads of households) rather than companies.

Effective recent system updates (such as those in early 2025/2026), Malaysian employers are largely directed to use the FWCMS portal for maid permit renewals, moving away from older ePLKS portals. The employer must register for an FWCMS account as an individual.

The prerequisites remain similar: the maid must have a valid passport and pass the FOMEMA medical check. The financial structure, however, differs. The levy for a first domestic helper is significantly cheaper than corporate sectors, generally ranging around RM400 to RM450, making the total renewal fee (including visa and processing) around RM610 to RM645 depending on nationality (e.g., Indonesian, Filipina, Sri Lankan). However, if a household employs a second or third maid, the levy increases drastically as a deterrent against excessive hiring.

Employers of domestic helpers must ensure they maintain the eligibility requirements to keep a maid, which include having children under 15 years old or elderly parents who require care, and maintaining a minimum household income threshold as dictated by the Immigration Department.

7. Repatriation and the Check-Out Memo (COM) A critical component of foreign worker management is knowing how to legally end the employment. If a worker has reached their 10-year maximum limit, if they fail their FOMEMA medical test, or if the employer simply does not wish to renew the contract, the employer cannot simply fire the worker and let them loose in the country.

The employer is legally obligated to apply for a Check-Out Memo (COM). Previously done at immigration counters, COM applications are now strictly mandatory online via the eCOM system. To apply for an eCOM, the employer must upload the worker's passport details and a confirmed one-way flight ticket back to the worker's country of origin. The flight date must be within 30 days and cannot exceed the expiry date of the current PLKS.

Once the COM is issued, the worker's PLKS is officially cancelled, and they are given a special pass strictly for the purpose of exiting the country. The employer's responsibility only ends once the worker has physically boarded the plane and exited Malaysian borders.

8. Managing Absconded Workers (Lari Dari Majikan) In situations where a foreign worker runs away from the employer's premises or workplace before their permit expires (absconding), the employer must take immediate legal action to clear their name and recover their security bond.

The employer must first lodge a formal Police Report detailing the date and time the worker went missing. Subsequently, the employer must notify the Immigration Department and JTKSM within a specific timeframe (usually within 7 to 14 days). The

employer submits the Police Report, a copy of the worker's passport, and an Absconded Worker Form. Immigration will then blacklist the worker, legally changing their status to an illegal immigrant, and the employer will be absolved of the levy and housing responsibilities for that specific individual.

9. Consequences of Late Renewal and Non-Compliance The Malaysian government exercises a zero-tolerance policy for late renewals. There is no official "grace period" after a permit expires. If an employer submits a renewal application even one day after the PLKS expiry date, the application will be rejected by standard online systems.

To resolve an expired permit, the employer must physically attend an Immigration Enforcement Division counter. They will be subjected to fines and compounds, and must apply for a Special Pass (Pas Khas) to legalize the worker temporarily while the late renewal is processed. If a worker is caught by authorities (such as during a police raid) with an expired permit, they will be detained and placed in an immigration depot, and the employer will face severe prosecution under the Immigration Act for harboring an illegal immigrant, which carries mandatory fines and potential imprisonment.

Therefore, setting internal HR calendars to trigger renewal procedures exactly 90 days before expiration is the standard and safest operational practice for any entity employing foreign labor in Malaysia.